

Tentative Rulings for September 15, 2026 Department 1

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 638 4172**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2304209	RIVERS vs WAL-MART ASSOCIATES, INC.	HEARING ON FINAL APPROVAL

Tentative Ruling: Appearances requested to discuss:

Why are 100% of the class payments attributable to non-wage penalties and interest?
Seems incorrect—why would there be a payment of penalties and interest if there were no unpaid wages?

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402537	NEILL vs BOOT BARN, INC.	HEARING ON FINAL APPROVAL

Tentative Ruling: Appearances requested to discuss:

1. Why are the settlement administration costs greater than on preliminary approval?
2. How much will the class representatives receive from the class/PAGA settlement?
3. Add to proposed judgment that administrator will send reminder postcard to anyone who did not cash their check within 60 days of mailing.
4. Add to proposed judgment that if any class members are current employees of Boot Barn, if the distribution mailed is returned as undeliverable and the administrator is unable to locate a valid mailing address, then the administrator shall arrange with Boot Barn to have those distributions delivered to the employees at their place of employment.
5. Who will give notice of entry of judgment and how will it be given? Add to proposed order.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2501372	ESTRADA vs U.S. COMMERCIAL FREIGHT, INC.	MOTION TO BE RELIEVED AS COUNSEL FOR U.S. COMMERCIAL FREIGHT, INC.

Tentative Ruling: No tentative ruling, appearances requested.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2602256	MARTINEZ vs QUINN GROUP, INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Appearances requested to discuss the application of the FAA/transportation worker exemption.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2602594	MURRELL vs BAR ISSI PALM SPRINGS LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Grant, no opposition.